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Privacy Policy

Before you read our full privacy policy below, we'd like to share a couple thoughts about how we view, protect, and make all efforts to ensure your privacy as it pertains to Kids Discover products and services.

Our worlds, and our lives, are increasingly connected with the Internet. For better or for worse, this means that more and more of our information is available online. The importance of keeping your personal information secure, and private, has never been more important. That's why Kids Discover makes an effort to keep the amount of data we collect on users to a minimum, and why we make strong efforts to protect and secure the data we do collect. We encourage our users to read our full privacy policy below, but we do want to highlight a couple crucial points about our privacy policy:

• We do not rent or sell any personal information we collect from our users to any 3rd parties.
• We do not sell any advertising on any of our products, and so the personal information you share with Kids Discover is never used for 3rd party marketing services.
• The only information we collect from students is first name, last name, username, and password. We do not accept any email addresses of individuals under the age of 18 years old.
• The personal information that we collect from adults is used for account registration, account-related access, and internal marketing and reporting efforts made directly from Kids Discover to our user base, such as email marketing and site usage.

Additionally, we have signed the K-12 School Service Provider Pledge to Safeguard Student Privacy. You can learn more about the pledge here (https://web.archive.org/web/20220130192034/http://studentprivacypledge.org/).

If you have any questions about our Privacy Policy, please feel free to email us at questions@kidsdiscover.com (https://web.archive.org/web/20220130192034/mailto:questions@kidsdiscover.com). We'd be more than happy to answer your questions, concerns, or help clarify the privacy policy below.

Sincerely,

Ted Levine
President & CEO
KIDS DISCOVER

PRIVACY POLICY

Effective Date: July 1, 2021

INTRODUCTION

The privacy of those who use the Kids Discover website, app, or any other extensions of Kids Discover's products or services is very important to us. As a family-owned and operated company, you can be certain that we approach your personal privacy and the security of our user data with care. If you have any questions about our Privacy Policy, please

feel free to email us at questions@kidsdiscover.com (https://web.archive.org/web/20220130192034/mailto:questions@kidsdiscover.com).

You'll notice that there is no advertising on, or in, any of Kids Discover's products, apps or websites. We do not believe in advertising to children.

Please read this Privacy Policy carefully to understand how we will treat your information before you start to use our Platform or communicate with us outside the Platform. This Privacy Policy also is intended to explain the conditions under which KDO uses and discloses that information, and your rights in relation to that information. Changes to this Privacy Policy are discussed at the end of this document. As used in this Privacy Policy, the terms "**KDO**," "**we**" and "**us**" refer to Kids Discover.

A note to minors: If you are under the age of 18, please get permission from your parent/legal guardian or school before using the Kids Discover Platform or sending any e-mail to us. You must be 18 or older to order a subscription to Kids Discover Online. We will not sell or market directly to minors and always seek authorization from either a parent, legal guardian, or school whenever we identify that a minor attempts to purchase a Kids Discover product or service. If we discover that we have collected any Personally Identifiable Information from a child under the age of 18 without parental or school consent, we will suspend the associated account and/or remove that information from our database as soon as possible. By purchasing a Kids Discover product or service, you represent and warrant that you are 18 years of age or older.

A note to schools and districts: Whenever we collect student identifiable information, we do so in support of the educational purposes for which Kids Discover Online is designed. Such information is only collected in conjunction with the use of Kids Discover Online (for account registration, account access, Lexile ® Leveled Reading designations, and performance on Kids Discover Online's Assessments feature), an optional feature that only schools and districts can access.

DEFINITIONS

The following definitions apply to this Privacy Policy:

"**Services**" means any and all children's educational products and services, and related services and promotions, provided by Kids Discover, including support services.

"**Website**" means any and all websites owned or operated by Kids Discover (including the website currently located at kidsdiscover.com (https://web.archive.org/web/20220130192034/http://www.kidsdiscover.com/)), through which access to Kids Discover's Services are available. References to the "Website" include any and all related features, functionality, tools, and content.

"**App**" means any and all downloadable applications (including, any mobile or tablet applications) owned or operated by Kids Discover through which access to Kids Discover's Services are available. References to the "App" include any and all related features, functionality, tools, and content.

"**Platform**" means, individually and collectively, the Services, Website and App including any related services and promotions, and any software and technology used to provide any of the foregoing.

"**User**" means any person or organization who accesses or uses the Platform in any manner including, without limitation, students, teachers, parents and school administrators. References to "access" and/or "use" of the Platform (and any variations thereof) include the acts of accessing or browsing the Platform, and accessing or using the Services.

WHAT TYPE OF INFORMATION DO WE COLLECT AND FOR WHAT PURPOSE/USE:

Types of Information

"**Personally Identifiable Information**" or "**PII**" is information that can identify a User of the Platform, including: e-mail; name; address; account username and password; payment card information and other billing information (such as card image, card number, cardholder name, expiration date and card verification code); virtual classroom; and school or school district.

"**Non-Personally Identifiable Information**" means all other data that is not Personally Identifiable Information (unless it is combined with Personally Identifiable Information, or unless otherwise required by applicable law).

Collection & Use of Personally Identifiable Information

Information collected when subscribing: In the registration process of any of our subscription types, we ask our subscribers to provide us with name, email address, affiliation with a school or district (if applicable), phone number and billing information. We use this contact information to send Users service-related announcements on rare occasions when it is necessary or advisable to do so. For instance, if we perform routine maintenance, we might send an informational email.

Username and password: Subscribers create a username and password in the registration process, or, if they prefer, we may assign these for them. We use usernames and passwords of subscribers' accounts to authenticate logins, allow access to the paid content and monitor subscription compliance. The username is also used to authenticate Users when requesting technical support. The passwords are all encrypted when stored.

Information collected when using Kids Discover Online: As part of certain subscriptions, schools and districts will use the individual accounts system which allows students and their teachers to share a virtual classroom. Student and teacher accounts are organized by classrooms, which are created by the teachers. For these accounts, we ask the students to enter their first and last name, their username, and the class they are associated with. We also require the teachers' email for password recovery. The only Personally Identifiable Information collected about students is their name, class and username. We do NOT collect students' email or physical addresses. We store the Lexile ® Reading Level data that may be set by a teacher, so that our content may be served up dynamically to a reader. We also store student performance on any Kids Discover Online Assessments that have been completed, in order to provide the educator(s) of those students with data pertaining to student performance. This data is not shared, tracked, or analyzed by Kids Discover, nor is it rented, sold, or used by any third party service providers. It is saved in our system to deliver a more optimal reading experience for the students and teachers using the service. It is not used in any other way.

Contact information for newsletter and surveys: On KidsDiscover.com and Kids Discover Online, you may choose to register to receive newsletters, promotional offerings or surveys, which requires your contact information. Such messages may include pixel tags and link tracking. The contact information you submit will not be shared, sold or used for any other purpose and you may opt out at any time. Registration to newsletters, promotional offering and surveys are not intended for minors under the age of 13.

Emails received from Users: We may retain certain information from Users when they send us messages through our system or by email. We only use such information for providing the Services or support requested.

Feedback: Certain features we offer include an option to provide us with feedback on your experience. The feedback feature does not identify the User submitting it. The feedback option is voluntary and the information a User submits to us will only be used for improving these features. If we receive personally identifiable information through a feedback form we take steps to immediately delete that information.

In addition to the foregoing, we also use Personally Identifiable Information for the following purposes:

To provide the Platform to you; operate our Platform, including access management, payment processing, Platform administration, internal operations, troubleshooting, data analysis, testing, research, statistical and survey purposes; comply with laws, regulations, and other legal requirements; comply with relevant industry standards and our policies; protect and enforce our rights and the rights of other Users against unlawful activity, including identify theft and fraud, and other violations of our Terms and Conditions;
protect and enforce our rights arising under any agreements entered into between you and us, including billing and collection; protect the integrity and maintain the security of our Platform, including secured areas of the Platform; operate, evaluate and improve our business, including conducting surveys and market research, developing new

products, services, and promotions (such as, for example, special events, programs, offers, contests), analyzing and enhancing existing products, services, and promotions, managing our communications; performing accounting, auditing, and other internal functions; and
as described in any notice provided at the time you provide the information and for any other purpose for which you may provide consent.

Collection & Use of Non-Personally Identifiable Information

Information collected automatically: We automatically receive and record information on our server logs from a User's browser, including the User's IP address. In addition, we use IP addresses to maintain a User's session and we do not store them after the User's session is over. We also do not otherwise combine this information with other PII.

Third Parties: We may use a variety of third-party service providers, such as analytics companies, to understand usage of our Services. We may allow those providers to place and read their own cookies, electronic images known as web beacons or single-pixel gifs and similar technologies, to help us measure how Users interact with our Services. This technical information is collected directly and automatically by these third parties. If you want to opt out or third party cookies, you may do so through your browser.

HOW WE SHARE YOUR INFORMATION

Personally Identifiable Information

We may provide Personally Identifiable Information to our partners, business affiliates and third party service providers who work for Kids Discover and operate some of its functionalities, such as hosting services, streaming services and credit card processing. These third parties are well-known, established service providers, who are bound contractually to practice adequate security measures and only use your information for the sole purpose of providing the Services. These third parties do not have independent right to share your Personally Identifiable Information.

We may also provide your Personally Identifiable Information to:

the organizations, entities on behalf of which we are providing the Platform to you and/or on behalf of which you access or use the Platform;
the designated administrator of your account, if you have an individual school or other educational subaccount, regarding use of the Services by individual subaccounts; and
other third parties with your express consent for any purpose disclosed by us when you provide the information.

We will NOT share any information for marketing or advertising purposes without your express consent, beyond Kids Discover's own use of the aforementioned information for internal marketing initiatives and efforts.

We reserve the right to disclose Personally Identifiable Information if we are required to do so by law or if we believe that disclosure is necessary to protect our rights and/or comply with a judicial proceeding, court order or legal process.

We also reserve the right to transfer your Personally Identifiable Information in case of a corporate restructuring (such as a merger or acquisition), as long as the receiving entity adopts this privacy policy that applies to your information. Any future successors must also pledge their commitment to the K-12 School Service Provider Pledge that we have signed and agreed to cooperate with.

Notice to California Residents / Your California Privacy Rights

California Civil Code permits California residents to request that we not share your Personally Identifiable Information with third parties for their direct marketing purposes. If you are a California resident, you may contact [questions@kidsdiscover.com] to request information regarding how we share Personally Identifiable Information with third parties for their direct marketing purposes and/or to request that such information not be shared with third parties for such purposes.

Non-Personally Identifiable Information

In addition, we may share Non-Personally Identifiable Information, including aggregated or anonymized data:

with analytics, search engine, or other service providers that help us improve our Platform;
to report to our affiliates, licensors and service providers about the use of various aspects of the Platform; and
with other Users or prospective Users of the Platform.

HOW WE STORE AND PROCESS YOUR INFORMATION

We strive to maintain security policies and procedures that are designed to protect your information.

Our servers are located in a secured, locked and monitored environment to prevent unauthorized entry or theft, and are protected by a firewall. The servers are located in a data center in the United States and backed up daily to a secure, US based, offsite data center.

We take extra measures to ensure the safety of PII and student records and apply a Secure Sockets Layer (SSL or HTTPS) encrypting technology to establish and ensure that all data passed between the server and the browser remains encrypted.

Governance policies and access controls are in place to ensure that the information of each district or school or other subscriber is separated and they are only able to access their own data.

Only limited Kids Discover personnel have access to the database, and they only access the database when necessary to provide the Services.

We follow standardized and documented procedures for coding, configuration management, patch installation and change management for all applicable servers and we audit our practices at least once a year.

While we strive to maintain best industry-standard privacy and security practices, it should be noted that no industry system is fail proof. In the event we learn of an actual data breach, loss or disaster, we have established a Disaster Recovery Plan, which includes notifying the affected subscriber, and as appropriate, coordinating with the subscriber to support its notification of affected individuals, students and families when there is a substantial risk of harm from the breach or a legal duty to provide notification.

KDO cannot ensure or warrant that your information, including your Personally Identifiable Information, is secure from unauthorized third parties. Thus, your use of the Platform and communication with us about them is at your own risk.

COOKIES AND BEACONS

We may use cookies, beacons and similar technologies, now or in the future, to support the functionality of our Platform. This provides a better experience when you visit our Platform and allows us to improve our Platform. Our service providers may use cookies and beacons to collect and share Non-Personally Identifiable Information about your activities both on our Platform and on other websites. In addition, third parties that are unaffiliated with us may also collect information about you, including tracking your browsing history, when you use our Platform. We do not have control over these third party collection practices. If you wish to minimize these third-party collections, and you can adjust the settings of your browsers or install plug-ins and add-ins.

Browser Cookies. A browser cookie is a small file placed on the hard drive of your computer. That cookie then communicates with servers, ours or those of other companies that we authorize to collect data for us, and allows recognition of your personal computer. We associate cookies with Personally Identifiable Information only if you use the automatic recognition capabilities on restricted areas of the Platform, order a Service, use the personalization services available as part of the Platform, or ask us to contact you with additional marketing information. We do not otherwise collect Personally Identifiable Information from browser cookies and we do not associate browser cookies with your Personally Identifiable Information.

You may use the tools available on your computer or other device to set your browser to refuse or disable all or some browser cookies, or to alert you when cookies are being set. However, if you refuse or disable all browser cookies, you may be unable to access certain parts or use certain features or functionality of our Platform.

You may choose whether to activate automatic recognition when you register for an account. After registration, you may disable the persistent cookie that supports recognition using the tools in your browser. If you choose to disable the cookies that support automatic recognition, you will need to re-enter your username or email and password each time you access a gated portion of the Platform.

Unless you have adjusted your browser settings so that it refuses all cookies, we may use cookies when you direct your browser to our Platform.

To learn more about cookies, you can visit http://www.allaboutcookies.org (https://web.archive.org/web/20220130192034/http://www.allaboutcookies.org/).

Flash Cookies. Certain features of our Platform may use local stored objects called flash cookies to collect and store information about your preferences and navigation to, from and on our Platform. We also include cookies in our third party hosted video players to count the number of unique viewers who see a customer's video press release and to provide aggregate reporting. The cookies do not identify you as an individual or track your online behavior. We do not collect Personally Identifiable Information from flash cookies and we will not associate them with your Personally Identifiable Information.

Flash cookies are not managed by the same browser settings as are used for browser cookies. To learn how you can manage your Flash cookie settings, visit the Flash player settings page on Adobe's website. If you disable or refuse Flash cookies, please note that some parts of our Platform may be inaccessible or may not function properly.

Beacons. Our Platform and e-mails may contain small electronic files known as beacons (also referred to as web beacons, clear GIFs, pixel tags and single-pixel GIFs) that permit us to, for example, count Users who have visited those pages or opened an e-mail and for other website-related statistics. Beacons in e-mail marketing campaigns allow us to track your responses and your interests in our content, offerings and web pages. You may use the tools in your device to disable these technologies as well.

Google Inc. ("**Google**") is one example of a service provider that uses cookies or similar technologies to collect information about your browsing activities over time and across different websites following your visit to our Platform. Google Analytics is a web analytics service provided by Google that uses first-party cookies to track Users' interactions and collect other information about how you use our Platform. Google Analytics collects information anonymously. We then use the information to compile reports, including usage trends, to help us improve our Platform. You can opt out of Google Analytics without affecting how you visit our site. For more information on how Google uses this data, go to www.google.com/policies/privacy/partners/ (https://web.archive.org/web/20220130192034/http://www.google.com/policies/privacy/partners/), or review the Google Analytics Terms of Service at https://www.google.com/analytics/terms/us.html (https://web.archive.org/web/20220130192034/https://www.google.com/analytics/terms/us.html). For more information about opting out of being tracked by Google Analytics across all websites you use, please visit https://tools.google.com/dlpage/gaoptout/ (https://web.archive.org/web/20220130192034/https://tools.google.com/dlpage/gaoptout/).

YOUR CHOICES

We offer you certain choices in connection with the information we collect from you.

Email Communications

You may have the opportunity to receive certain communications from us related to our Platform. If you provide us with your e-mail address in order to receive communications, you can opt out of marketing e-mails at any time by following the instructions at the bottom of our e-mails and adjusting your e-mail preferences. Please note that certain e-mails may be necessary for the operation of our Platform. You will continue to receive these e-mails, if appropriate, even if you unsubscribe from our optional communications.

Cookies/Beacons

If you wish to minimize information collected by cookie or beacon, you can adjust the settings of your browsers to notify you when you receive a cookie, which lets you choose whether or not to accept it. You can also set your browser to automatically reject any cookies. You may also be able to install plug-ins and add-ins that serve similar functions. However, please be aware that some features and services on our Platform may not work properly if we are not able to recognize and associate you with your account. In addition, the offers we provide when you visit us may not be as relevant to you or tailored to your interests.

Network Advertising Initiative

Certain websites you visit may provide options regarding advertisements you receive. If you wish to minimize the amount of targeted advertising you receive, you can opt out of certain network advertising programs through the Network Advertising Initiative (NAI) Opt–Out Page. Please note that even if you choose to remove your information (opt out) you will still see advertisements while you're browsing online. However the advertisements you see may be less relevant to you. For more information or to opt out of certain online behavioral advertising, please visit http://www.aboutads.info (https://web.archive.org/web/20220130192034/http://www.aboutads.info/).

Additionally, many advertising network programs allow you to view and manage the interest categories that they have compiled from your online browsing activities. These interest categories help determine the types of targeted advertisements you may receive. The NAI Opt–Out Page provides a tool that identifies its member companies that have cookies on your browser and provides links to those companies.

Do Not Track

Some browsers support a "Do Not Track" (or, DNT) feature, a privacy preference that Users can set in certain web browsers, which is intended to be a signal to websites and services that you do not wish to be tracked across different websites or online services you visit. Our Platform does not currently recognize or respond to DNT signals, so DNT settings do not change the way the Platform operates.

Please note that we cannot control how third party websites or online services you visit through our Platform respond to Do Not Track signals. Check the privacy policies of those third parties for information on their privacy practices.

Updating or Deleting Information

The accuracy of the information we have about you is very important. Users may update their information at any time by following directions available on the account registration page. Otherwise, to review, correct or delete your Personally Identifiable Information, please contact us at [questions@kidsdiscover.com (https://web.archive.org/web/20220130192034/mailto:privacy@kidsdiscover.com)]. For more information about your choices, or to review or correct your Personally Identifiable Information, please use the Settings menu within the App or the Website and follow the prompts, or contact us as indicated in the "Contact Us" section of this Privacy Policy.

LINKS TO THIRD PARTY WEBSITES

Our Platform may contain links to third party websites and services, including those of our partner networks. Please note that these links are provided your convenience and information, and the websites and services may operate independently from us and have their own privacy policies or notices, which we strongly suggest you review. This Privacy Policy applies to Kids Discover and our Platform only. We do not accept any responsibility or liability for the policies or practices of any third parties. If you chose to access any websites or services linked from our Platform, please check the applicable policies before you use or submit any personal data to such website or service.

INTERNATIONAL JURISDICTIONS

The Platform is hosted in the United States of America and is subject to U.S. state and federal law. If you are accessing our Platform from other jurisdictions, please be advised that you are transferring your personal information to us in the United States, and by using our Platform, you consent to that transfer and use of your personal information in accordance with this Privacy Policy. You also agree to abide by the applicable laws of applicable states and U.S.

federal law concerning your use of the Platform and your agreements with us. Any persons accessing our Platform from any jurisdiction with laws or regulations governing the use of the Internet, including personal data collection, use and disclosure, different from those of the jurisdictions mentioned above may only use the Platform in a manner lawful in their jurisdiction. If your use of the Platform would be unlawful in your jurisdiction, you may not use the Platform.

CHANGES TO OUR PRIVACY POLICY

Kids Discover may, in its sole discretion, change this Privacy Policy from time to time. Any and all changes to this Privacy Policy will be reflected on this page and the effective date will be stated at the top of this Privacy Policy. Unless stated otherwise, our current Privacy Policy applies to all information that we have about you and your account. Users should regularly check this page for any changes to this Privacy Policy. Kids Discover will always post new versions of the Privacy Policy on the Website. However, Kids Discover may, as determined in its discretion, decide to notify Users of material changes made to this Privacy Policy via email or otherwise. Accordingly, it is important that you always maintain and update your contact information.

Your continued use of the Platform or communication with us after the updated Privacy Policy has been posted (or any other indication of your consent) will constitute your acceptance of the updated Privacy Policy.

Please note that we may condition your continued access to our Platform on your consent to changes to this Privacy Policy.

CONTACT US

If you have questions or comments relating to this Privacy Policy, or if you would like us to update information we have about you or your preferences, please contact us by email at questions@kidsdiscover.com (https://web.archive.org/web/20220130192034/mailto:questions@kidsdiscover.com), or write to us at:

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